

Andhra Pradesh (Issuance of Integrated Registration and Furnishing of Combined Returns under various Labour Laws by certain Establishments) Act, 2015

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State of Andhra Pradesh - Act

Andhra Pradesh (Issuance of Integrated Registration and Furnishing of Combined Returns under various Labour Laws by certain Establishments) Act, 2015

ANDHRA PRADESH

India

Andhra Pradesh (Issuance of Integrated Registration and Furnishing of Combined Returns under various Labour Laws by certain Establishments) Act, 2015

Act 10 of 2015

Published on 20 April 2015

Commenced on 20 April 2015

[This is the version of this document from 20 April 2015.]

[Note: The original publication document is not available and this content could not be verified.]

Andhra Pradesh (Issuance of Integrated Registration and Furnishing of Combined Returns under various Labour Laws by certain Establishments) Act, 2015

(Act

No. 10 of 2015

)

Last Updated 31st July, 2019

[Dated 20.04.2015]

An Act to Provide for Issuance of Integrated Registration and Furnishing of Combined Returns Under Certain Labour Laws By Certain Establishments in The State of Andhra Pradesh.

Be it enacted by the Legislature of the State of Andhra Pradesh in the Sixty-sixth Year of the Republic of India, as follows:

1.

Short title, extent and commencement.

(1)

This Act may be called the Andhra Pradesh (Issuance of Integrated Registration and Furnishing of Combined Returns under various Labour Laws by certain Establishments) Act, 2015;

(2)

It extends to the whole of the State of Andhra Pradesh;

(3)

It shall come into force on such date as the Government may, by notification in the Andhra Pradesh Gazette, appoint and different dates may be appointed for different provisions.

2.

Definitions.

- In this Act, unless the context otherwise requires -

(a)

"employer", in relation to the concerned Scheduled Act, means the person who is required to obtain Registration and furnish Returns under that Act;

(b)

"Commissioner of Labour" means the Head of the Office of the Commissioner of Labour;

(c)

"establishment" has the meaning assigned to it in the concerned Scheduled Act;

(d)

"Form" means the forms specified in the Second Schedule;

(e)

"Government" means the State Government;

(f)

"notification" means a notification published in the Andhra Pradesh Gazette and the word 'notified' shall be construed accordingly;

(g)

"Scheduled Act" means an Act specified in the First Schedule;

(h)

"State" means the State Government of Andhra Pradesh;

(i)

"Rules" means the rules framed under the Scheduled Acts.

3.

Effect of laws specified in Schedule-I.

- On and from the commencement of this Act, the Act at Sl.No.1 of the First Schedule and the Andhra Pradesh Rules made under the Central Acts specified in the First Schedule shall have effect subject to the provisions of this Act.

4.

Application for integrated registration under the Scheduled Acts and filling of combined.

(1)

On and from the commencement of this Act, an employer, in relation to an establishment to which the Scheduled Acts apply shall apply for integrated registration online under the First Schedule Acts in Form-A of the Second Schedule.

(2)

The Registration Certificate in Form-C shall be issued instantaneously subject to verification after issuance.

(3)

Manual issuance of Registration Certificate shall be prohibited from the date to be notified by the Commissioner of Labour.

(4)

The validity of the Registration shall be upto 31st March of the third year from the date of issue. The Registration, wherever requires renewal under the Scheduled Acts, shall be renewed for a further period of three years within 31 days before the expiry of the Registration.

(5)

The Fee payable for issuance of the Integrated Registration shall be as notified by the Commissioner of Labour.

(6)

An employer in relation to an establishment to which the Scheduled Acts apply, shall submit Combined Return on Form-B of the Second Schedule.

(7)

The relevant provisions of the State Act and the Andhra Pradesh Rules made under the respective Central Acts in the First Schedule shall be deemed to have been amended to that extent.

5.

Savings.

- The commencement of this Act shall not affect -

(1)

the previous operation of any provision of any Scheduled Act or the validity. Invalidity, effect or consequence of anything done or suffered under that provision, before the relevant period.

(2)

any right, privilege, obligation or liability already acquired, accrued or incurred under any Scheduled Act, before the relevant period;

(3)

any penalty, forfeiture or punishment incurred or inflicted in respect of any offence committed under any Scheduled Act, before the relevant period.

(4)

any investigation, legal proceeding or remedy in respect of any such right, privilege, obligation, liability, penalty, forfeiture or punishment aforesaid and any such investigation, legal proceeding or remedy in respect of any such right, privilege, obligation, liability, penalty, forfeiture or punishment shall be instituted, continued or disposed of, as the case may be, in accordance with that Scheduled Act.

Explanation. - For the purpose of this section, the expression "relevant period" means the period during which an establishment is or was covered under this Act.

6.

Power to amend Forms.

- The Government may, if it is of opinion that it is expedient so to do, by notification in the official Gazette, amend any Form and thereupon such Form shall, subject to the provisions of this Act shall be deemed to have been amended accordingly.

7.

Power to remove difficulties.

- If any difficulty arises in giving effect to the provisions of this Act, the Government may, by notification remove difficulties by orders not inconsistent with the provisions of this Act, but which appear to them to be necessary or expedient to remove such difficulty.

8.

Power to give directions.

- For the purpose of giving effect to the provisions of this Act, it shall be competent for the Government to issue such directions as they deem fit to the officers, and authorities subordinate to them and also to any local authority and it shall be the duty of such officers, authorities and local authorities to comply with such directions.

9.

Power to amend Schedules.

(1)

The Government may, by notification, alter, add to or cancel any of the schedules;

(2)

Where a notification has been issued under sub-section (1), there shall, unless the notification is in the meantime rescinded, be introduced in the Legislature of the State, as soon as may be but in any case during the next session of the Legislature of the State following the date of the issue of the notification, a Bill on behalf of the Government, to give effect to the alteration, addition or cancellation, as the case may be, of the Schedule specified in the notification, and the notification shall cease to have effect when such Bill becomes law, whether with or without modifications, but without prejudice to the validity of anything previously done thereunder;

Provided that if the notification under sub-section (1) is issued when Legislature of the State is in session, such a Bill shall be introduced in the Legislature of the State during that session:

Provided further that where for any reason a Bill as aforesaid does not become law within six months from the date of its introduction in the Legislature of the State, the notification shall cease to have effect on the expiration of the said period of six months.

First Schedule

[See section 2(c),(g) and (i)]

[Substituted by Act 18 of 2017, s.2 (w.e.f. 30-04-2016).]

(1)

The Andhra Pradesh Shops and Establishments Act, 1988 (Act

No.20 of 1988

) and the Andhra Pradesh Shops and Establishments Rules, 1990 framed thereunder;

(2)

The Motor Transport Workers Act, 1961 (Central Act 27 of 1961) and the Andhra Pradesh Motor Transport Workers Rules, 1963 framed thereunder;

(3)

The Contract Labour (Regulation and Abolition) Act, 1970 (Central Act No.37 of 1970) and the Andhra Pradesh Contract Labour (Regulation and Abolition) Rules, 1971 framed thereunder;

(4)

The Inter State Migrant Workmen (Regulation of Employment and Conditions of Service) Act, 1979 (Central Act No.30 of 1979) and the Andhra Pradesh Inter State Migrant Workmen (Regulation of Employment and Conditions of Service) Rules, 1982 framed thereunder;

(5)

The Building and Other Construction Workers (Regulation of Employment and Conditions of Service) Act, 1996 (Central Act No.27 of 1996) and the Andhra Pradesh Building and Other Construction Workers (Regulation of Employment and Conditions of Service) Rules, 1999 framed thereunder;

(6)

Payment of Gratuity Act, 1972 (Central Act No.39 of 1972) and the Andhra Pradesh Compulsory Gratuity Insurance Rules, 2011 framed thereunder.

(7)

[The Beedi and Cigar Workers (Conditions of Employment) Act, 1966 and Andhra Pradesh Beedi & Cigar Workers (Conditions of Employment) Rules, 1968,

[Inserted by Act 18 of 2017, Dated 19.07.2017.]

(8)

The Minimum Wages Act, 1948 and Andhra Pradesh Minimum Wages Rules, 1960;

(9)

The Plantation Labour Act, 1951,

(10)

The Maternity Benefit Act, 1961,

(11)

The Andhra Pradesh Labour Welfare Fund Act, 1987 and Andhra Pradesh Labour Welfare Fund Rules, 1988;

(12)

The Payment of Bonus Act, 1965,

(13)

The Child Labour (Prohibition and Regulation) Act, 1986 and Andhra Pradesh Child Labour (Prohibition and Regulation) Rules, 1995;

(14)

The Trade Unions Act, 1926 and Andhra Pradesh Trade Union Regulations, 1927.]

[Second Schedule]

[Substituted by Act 18 of 2017, s. 3 (w.e.f. 30-04-2016).]

[See Sections 2(d) and 4]

[Form A [section 4(1)], Form B [section 4(6)]

and Form C [section 4(2)]

Form - A

Application For Integrated Registration of
Establishment Under Labour Laws
Registration/License Required Under (Specify
the Act with tick mark)

1

A.P. Shops & Establishments Act, 1988

2

Motor Transport Workers Act, 1966

3

Contract Labour (R&A) Act, 1970 (Principal
employer Establishment & Contractor Establishment)

4

Inter State Migrant Workmen (RE&CS) Act,
1979 (Principal employer Establishment & contractor
Establishment)

5

Building and Other Construction Workers (RE&CS)
Act, 1996

6

Payment of Gratuity Act, 1972

7

Beedi & Cigar Workers (COE) Act, 1966
Establishment Details

1

Name of the Establishment

2

Classification of Establishment (Proprietor
firm, Partnership firm, Pvt. Ltd, Public Ltd, Cooperative,
Society etc.)

3

Category of Establishment [Shop, Establishment,
Commercial Establishment Motor Transport undertaking, Building or
other construction Establishment, Contract Labour (Prl. Employer
/ Contractor) Establishment]

4

Address of establishment

5

Nature of Business/work/construction activity

6

Date of commencement of

business/work/construction/activity

7

Date of completion of work/construction/activity

(if applicable)

8

Date of agreement

9

No .of transport vehicles

10

Whether Form-V/Form-VI issued by Principal

Employer

11

Agreement No/Plan approval No.

12

Date of agreement/Plan approval

13

Estimated cost of construction & other

Details (in case of building or other construction work)

14

Details of contractors (Contract Labour

Act/Inter State Migrant Workmen Act)

15

Details of contract works (Contract Labour

Act/Inter State Migrant Work men Act)

16

Total No. of Workers

17

Details of workers

Regular

Casual/ Badilli

In case of beedi or cigar est.

Male

Female

Male

Female

Industrial premises workers

Home workers

Male

Female

Male

Female

18

Workers employed in shops & Esstts.

19

Motor Transport Workers

20

Building & other construction workers

21

Contract workers

22

Inter State Migrant Workers

23

Beedi & Cigar workers

24

Factory workers

25

Any other Category workers (specify the category)

Employer Details (Enclose Passport size photo)

26

Employer Name

27

Designation

28

Father/husband Name

29

Contact details

Applicants Details

30

Applicant Name

31

Designation

32

Father/husband name

33

Contact details

Declaration

34

I/we hereby declare that i/we have complied with all relevant provisions of the Labour Acts applicable to the establishment. In case the information furnished above is found to be false, misrepresented or suppressed and material information or evaded to furnish the information, I/we are liable for prosecution as per law besides cancellation of the registration/license

Date

Signature of the Employer

Place

Name & Designation of the Employer

Form-B

Combined Return Under Labour Laws

As on 31st March, 20

Second Schedule

(See section 2 (d) and section 4 (6))

Annual Return for the Year Ending 31st March

1.

Establishment Registration /License No.(LIN)

2.

Establishment Name

3.

Address

4.

Establishment details

5.
Classification of Establishment
6.
Employer details
7.
Establishment category
8.
Nature of work/ activity/business/industry of the Establishment
9.
Total. No. of Workers (furnish details in Annexure-1)
- 10
Details of payment of wages (furnish details in Annexure-2)
- 11
No. of the workers allowed to work overtime in the year
- 12
Amount of over time wages paid in the year
- 13
No.of workers covered underEDF
- 14
No. of workers covered underESI
- 15
Details of Gratuity
- 16
Details of Bonus paid
- 17
Details of Employees Compensation paid
- 18
Leave eligibility
- 19
Details of payment of maternity benefit
- 20
Details of weekly off & other holidays allowed
- 21
Details of Welfare fund contribution
- 22
Details of settlements/Strikes/Lock-outs/Lay-offs/Retrenchments closures etc.
- 23
Whether Works Committee constituted
- 24
Details of Trade Union existing in the establishment/industry
- 25
Details of contractors under Contract Labour Act
- 26
Details of contractors under Inter State Migrant Workmen Act

27

Whether muster roll, wages register etc, maintained

28

Whether appointment letters/Identity cards issued

29

Details of building or other construction work

30

Note:- Combined Annual Return for the ending 31

March shall be furnished online before 30th June of the following year

Declaration

I/we hereby declare that I/we have complied with all relevant provisions of the Labour Act applicable to the establishment. In the case the information furnished above is found to be false, misrepresented or suppressed any material information or evaded to furnish the information, I/we are liable for prosecution as per law besides cancellation of the registration /license granted.

Signature of the Employer

Date

Place

Name & Designation of the Employer

Annexure-I

Statement Showing Category Wise Details of Workers

Establishment category/ worker category

Direct workers

Contract workers (contract labour act)

Inter State migrant workers/ (Inter State workmen Act)

Casual workers

Seasonal workers

Badli Workers

Apprentice

Others (Specify the category)

Male

Female

Male

Female

Male

Female

Male

Female

Male

Female

Male

Female

Male

Female

Male

Female

Employees in shops (AP Shops & Estts. Act)

Employees in Establishments (AP Shops & Essts Act)

Employed in Factories

Building and other construction Workers

Sales promotion employees

Plantation workers

Beedi/ Cigar Workers

Any other category worker/ Establishment (specify name)

Annexure-2

Statement of Details of Wages, Bonus Paid to the Workers During the Year

Sl. No

Name of the worker

Gender

Establishment category (as vertical column in Annexure.1)

Worker category (as specified in horizontal column in Annexure. 1)

Designation

Length of service

Staff code No/Staff No/ Token No.

EPF No.

ESIC No

1

2

3

4

5

6

7

8

9

10

Details of Wages Paid Per Month

Amount of bonus paid for the previous accounting year

Whether covered under gratuity insurance scheme

Basic wage

VDA

All other allowance

Total wages (gross)

Deduction

Net wages paid

11

12

13

14

15

16

17

18

Government of Andhra Pradesh

Labour Department

Form-C

Certificate Of Registration/license of

Establishment - Sec. 2(d) and 4(2)

The Andhra Pradesh

(Issuance of Integrated Registration and Furnishing of Combined

Returns under various

Labour Laws by certain Establishments) Act, 2015

1. Registration / License Number (LIN):

2. Name of the Establishment:

3. Address of the Establishment:

4. Employer Name:

5. Employer Address:

6. Category of Establishment:

No. of workers

Nature of work/business

Date of commencement

Date of completion

7. Date of issue:

8. Registration valid up to:

It is hereby certified that the establishment

has been Registered / Licensed under The Andhra Pradesh Issuance

of Integrated Registration and Furnishing of Combined Returns

under various Labour Laws by certain Establishments) Act, 2015.

The License is granted for doing the work of

_____ in the Establishment of

(Principal Employer)

Registering / Licensing Officer

Note. - 1. The Registration / License is valid from the date of Registration / License, to 31st March of the third year. Registration / License shall be renewed for the next three years before 31st March of the third year.

2. If the information furnished by the employer is subsequently found that any of the particulars furnished are wrong, or essential information is suppressed or misrepresented, the Registration / License is liable for cancellation without any notice and the employer will be liable for penal action as per law.

3. The Certificate of Registration / License is generated instantaneously, based on the information furnished by the employer in the application, which can be verified online in the mee-seva website at www.ap.meeseva.gov.in.]

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Translation